

the assistance of the Court to constitute a *cestui que trust*, and the instrument is voluntary, you shall not have that assistance for the purpose of constituting a *cestui que trust*, as upon a covenant to transfer stock, &c.; but if the party has completely transferred stock, &c., though it is voluntary, yet the legal conveyance being effectually made, the equitable interest will be enforced by this Court (a).” If, however, the settlor purport to transfer the legal estate to a trustee, but the trustee afterwards *disclaims*, the accident of the disclaimer has been held not to vitiate the deed, but the Court will appoint a new trustee (b).

6. **Where the property is a legal interest incapable of legal transfer.**—If the subject of the trust be a *legal interest*, but *one not capable of legal transfer*, then whether we look to principle or authority, there is considerable difficulty. On the one hand, it may be urged that in equity the universal rule is that the Court will not enforce a voluntary agreement in favour of a volunteer; and as by the supposition the legal interest remains in the settlor (who therefore at law retains the full benefit), a Court of equity will not in the absence of any consideration deprive him of that interest which he has not actually parted with. On the other hand, as the settlor *cannot* divest himself of the legal interest, to say that he shall not constitute another a trustee without passing the legal interest, would be to debar him from the creation of a trust in the hands of another at all, and the rule therefore should be that if the settlor make all the assignment of the property in his power and perfect the transaction as far as

Russ. & M. 452; Meek v. Kettlewell, 1 Hare, 469; Dillon v. Coppin, 4 M. & Cr. 647; Coningham v. Plunkett, 2 Y. & C. Ch. Ca. 245; Searle v. Law, 15 Sim. 95; Price v. Price, 14 Beav. 598; Bridge v. Bridge, 16 Beav. 315; Weale v. Ollive, 17 Beav. 252; Beech v. Keep, 18 Beav. 285; Tatham v. Vernon, 20 Beav. 604; Dillon v. Bone, 3 Giff. 238; Milroy v. Lord, 8 Jur. N. S. 806; 4 De G. F. & J. 264; Warriner v. Rogers, 16 L. R. Eq. 340; Richards v. Delbridge, 18 L. R. Eq. 11; Heartley v. Nicholson, 19 L. R. Eq.

233; Batstone v. Salter, 19 L. R. Eq. 250; 10 L. R. Ch. App. 431; [Bulbeck v. Silvester, 45 L. J. N. S. Ch. 280; West v. West, 9 L. R. Ir. 121.]

(a) Ellison v. Ellison, 6 Ves. 602; Antrobus v. Smith, 12 Ves. 39; Colman v. Sarrel, 1 Ves. jun. 50; S. C. 3 B. C. C. 12; Dening v. Ware, 22 Beav. 184; but see Airey v. Hall, 3 Sm. & Gif. 315; Kiddill v. Farnell, 3 Sm. & Gif. 428; and see Pulvertoft v. Pulvertoft, 18 Ves. 80.

(b) Jones v. Jones, W. N. 1874, p. 190.